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JUDGMENT SHEET

IN THE LAHORE HIGH COURT, BAHAWALPUR BENCH, BAHAWALPUR

(JUDICIAL DEPARTMENT)

W.P No.2062 of 2023

Umar Sheraz **Versus** Govt. of Punjab, etc.

J U D G M E N T

Date of Hearing.	07.01.2025.
Petitioner by:	M/s. Ch. Muhammad Jamil, Ch. Riaz Ahmad and Miss Noreen Atta, Advocates.
Official respondents by:	Rai Mazhar Hussain Kharal, A.A.G.

Anwaarul Haq Pannun, J. Through this writ petition under Article 199 of the Constitution of Islamic Republic of Pakistan, 1973, the petitioner has assailed the order dated 02.03.2023 passed by the Superintendent of Police, Punjab Highway Patrol, Bahawalpur Region Bahawalpur/respondent No.3 whereby, the petitioner, despite being successful throughout the selection/recruitment process, was refused his appointment letter as Constable in the Police Department.

2. Precisely, the factual matrix of instant writ petition is that the petitioner submitted his application with a requisite affidavit against Minority Quota, for his appointment as Constable in the Punjab Highway Patrol, in response to an advertisement, inviting applications from the eligible candidates for their recruitment by respondent No.2/DIG (Establishment-II), Central Police Office, Lahore. He was declared successful throughout the process of recruitment, as aforesaid, yet he was not issued his appointment letter, constrained of the situation, the petitioner had to file ***Writ Petition No.6630 of 2022/BWP***, which was disposed of, vide order dated 30.11.2022 as follows:-

> *"Learned counsel for the petitioner does not press this petition and would be satisfied if copy of this petition alongwith all annexures is forwarded to respondent No.3 who will consider it as a "representation' of the petitioner and decide the issue in hand after affording opportunity of hearing to all concerned including the petitioner through a well-reasons speaking order, strictly in accordance with law and in the light of judgments of this Court reported as Waseem Yaqoob Vs. Govt. of the Punjab and others (2018 PLC (C.S) 454) and Inamullah Vs. Govt. of KPK through Chief Secretary and 3-others (2017 PLC (C.S) 926) as early as possible.*
> *2. Order accordingly".*

The Superintendent of Police, Punjab Highway Patrol, Bahawalpur Region Bahawalpur/respondent No.3 dismissed the representation of the petitioner, vide its order dated 02.03.2023. Hence this petition with the following prayer:-

> *"By accepting this writ petition the impugned order dated 02.03.2023 passed by respondent No.3 by which respondent No.3 declared the petitioner as unfit for police department and stopped the appointment letter of the petitioner, is illegal against the law and facts, may kindly be set aside, respondent No.3 may kindly be directed to issue the appointment letter for constable in PHP Region Bahawalpur in favour of the petitioner, without any further delay in the interest of justice".*

3. In compliance with the order dated 17.03.2023, respondents No.2 & 3/police department have filed their report and para-wise comments, perusal whereof, in pith and substance discloses that position of the petitioner being on merit is not disputed, however, it has been maintained that during his character/antecedents verification, it came to light that previously, the petitioner was challaned in a criminal case registered vide FIR No.319/2014 dated 08.08.2014, offence under Section 377 PPC at Police Station Faqeerwali, District Bahawalnagar. He had although been acquitted of the charge on the basis of compromise, vide judgment dated 27.03.2015 by the trial Court, yet the petitioner while submitting his application along with a sworn affidavit did not disclose this fact, therefore being guilty of making this concealment, in the light of

instructions issued by the office of Inspector General of Police Punjab, vide its office letter No.AD-III/6066-6104/XV dated 20.05.2022 & Addl. IGP/PHP Lahore vide letter No.14234/OSI/ PHP/HQ dated 05.09.2022, the petitioner was not issued his appointment letter. Along with the comments, a copy of letter issued by Government of the Punjab Police Department, to all heads of police in Punjab bearing No. SE-IV/7317-70/II, dated 26.06.2014 is appended, whereby *"the competent authority has decided in principal that all those candidates who, during character verification, have been found involved in criminal cases (either under trial or acquitted on multiple grounds) shall not be appointed in Police Department as constable"*.

4. Arguments heard and record perused.

5. In the facts and circumstances of instant case, a question regarding the legality and sustainability of adverse consequences, effecting the fundamental rights due to previous involvement of the petitioner in a criminal case despite he had been acquitted of the charge, as contained in the impugned order, based upon the letter bearing No.AD-III/6066-6104/XV dated 20.05.2022 & Addl. IGP/PHP Lahore vide letter No.14234/OSI/ PHP/HQ dated 05.09.2022, and initial policy instructions vide letter No.SE-IV/7317-70/II, dated 26.06.2014, has emerged as a pivotal point, seeking its determination authoritatively, which requires an elaborate discussion, therefore, the same is being made hereunder.

6. Under Section 154 and 155, Part-V, Chapter XIV of the Code of Criminal Procedure, 1898 ***[Information to the police and their powers to investigate]*** every information relating to the commission of a cognizable offence, whether given orally or in writing to the officer-in-charge of the police station, has to be reduced into writing and signed by the person giving it and its substance is entered in a book to be kept by such officer in the form prescribed by the Provincial Government in this behalf, *[The original copy of FIR shall be a permanent record in the Police*

Station] ***WHEREAS*** when an information in non-cognizable cases is given to officer-in-charge of a police station, he is obliged to enter the substance of such information in a book kept for the purpose and refer the informant to the Magistrate. Thereafter the officer incharge of the police station is required under Section 156(1) of Cr.P.C to investigate ***[investigation includes, as per Section 4(l) of Cr.P.C; all the proceedings under the Code for the collection of evidence conducted by a police-officer or by any person (other than a Magistrate) who is authorized by a Magistrate in this behalf]*** the cases cognizable by the police registered under Section 154, Cr.P.C, in the light and guidance as contained in the Police Rules, 1934, hereinafter to be called as ***Rules, 1934***, which stands adopted under Section 185 of the Police Order, 2002 by extending the requisite statutory backing to ensure continuity in police administration and procedure previously governed by the Police Act 1861. The officer-in-charge cannot start investigation in non-cognizable offences, without securing permission from the Magistrate and once it is granted, the investigation shall be conducted in the same manner as the offences were cognizable, yet the arrest of an accused can only be made after issuance of a warrant by a magistrate, as warranted by Section 155(3) of Cr.PC and Rule 25.11(2) of the Rules, 1934. A Police Officer making an investigation as required under Rule 25.53 has to enter the proceedings he had undertaken day by day in a case diary, and submit in the same prescribed manner for cognizable cases. The nomination of a person as an accused in the FIR or through some supplementary or subsequent statements cannot necessarily be equated with involvement of such accused in the commission of offence. The Investigating Officer, is under a legal obligation as mandated by Rule 25.2(3), to investigate the matter with an object to discover the actual facts of the case and to find out the truth of the matter while considering all the versions of the incident brought to his notice from all possible angles and to cause arrest of the real

offender or offenders. The Investigating Officer, thus, is required not to commit himself prematurely to any of the view of the facts for or against any person. A police officer however under **Rule 26.1 of the Rules, 1934** is authorized to arrest any person, who, in his opinion formed objectively, has been concerned in any cognizable offence or against whom a reasonable complaint has been made, or credible information has been received, or a reasonable suspicion exists, without a warrant. The power of the police regarding arrest of the accused without a warrant is, permissive and not obligatory. Ordinarily no person is to be arrested straightaway only because he has been nominated as an accused person in an FIR ***or*** in any other version of the incident brought to the notice of the Investigating Officer by any person ***until*** the investigating officer is satisfied that there exists, as aforesaid, sufficient justification for his arrest, in the light of relevant provisions of the Cr.P.C and the Rules, 1934. It is significant to highlight that ***under Rule 26.2 of Police Rules 1934, the police officer has been vested with the power to defer the arrest of a person accused of an offence until the investigation is sufficiently complete.*** In a case titled *"Mst. Sughran Bibi Versus The State"* **(PLD 2018 SC 595)**, the apex Court has observed that *"ordinarily no person is to be arrested straightaway only because he has been nominated as an accused person in an FIR or in any other version of the incident brought to the notice of the Investigating Officer by any person until the investigating officer feels satisfied that sufficient justification exists for his arrest and for such justification he is to be guided by the relevant provisions of the Code of Criminal Procedure, 1898 and the Police Rules, 1934. According to the relevant provisions of the said Code and the Rules, a suspect is not to be arrested straightaway or as a matter of course and, unless the situation on the ground so warrants, the arrest is to be deferred till such time that sufficient material or evidence becomes available on the record of investigation prima facie satisfying the*

investigating officer regarding correctness of the allegations leveled against such suspect or regarding his involvement in the crime in issue." Reliance can also be placed upon the case reported as *"Shahzada Qaiser Arfat alias Qaiser Vs. The State and another"* **(PLD 2021 SC 708)**, *"Sarwar and others Vs. The State and others"* **(2014 SCMR 1762)**.

7. A police officer, in case of arrest of an accused on his own whims and wishes, cannot detain such person for an indefinite period. He is required, as warranted by Rule 25.56 read with Section 61, Cr.P.C having its roots in Article 10 (2) of the Constitution of Islamic Republic of Pakistan, 1973, to get the arrest and detention of an accused regulated for the purpose of further investigation. The Police Officer has to make an application in accordance with the provisions of section 167, Cr.P.C, on an incomplete charge sheet ***[in Form 25.56(1)]*** along with the case diaries or its copies, whereupon, the Magistrate can authorize the detention of the accused not exceeding *fifteen days* in the whole to complete the investigation or discharge such person under Section 63 Cr.P.C owing to deficit evidence. ***However,*** the Investigating Officer, if upon further investigation finds out that in the attending circumstances of the case, the allegations levelled against the accused, appear either to be false or there exists no sufficient incriminating material on record, implicating him with the commission of alleged offence, he is not denuded of his power to release the accused on his executing a bond to appear before Magistrate if and when so required, under Section 169 Cr.P.C *(see Rana Farhan-ul-Hassan and another Vs. the State and another"* **(2007 P. Cr. L J 570)),** and on the other hand, if he finds that there is sufficient evidence or reasonable grounds exist, he shall forward the accused under custody under Section 170 of Cr.P.C to Magistrate to take cognizance of offence and try the accused or send him for trial to the competent court of jurisdiction. Furthermore, the officer-in-charge of the police station is under a

statutory obligation to forward a complete or incomplete report under section 173 of Cr.P.C, placing the name of accused, against whom, in his opinion, sufficient evidence connecting him with the commission of offence has been found, in its column No.3, ***whereas*** the name of the accused against whom there existed a deficient evidence ***or*** who had been declared proclaimed offender shall be entered in column No.2 thereof respectively yet the entry of proclaimed offender shall be made with red ink, after making requisite compliance with Section 9(4) and 9(7) of the Punjab Criminal Prosecution Service Act, 2006, in a prescribed form to Magistrate either to take cognizance of the offence or send it for the trial to the court of competent jurisdiction, and if it appears from such report to the Magistrate that the accused placed in column No.2 of the report due to deficiency of incriminating material against him, has already been released on bond, shall by applying his judicial mind to the material placed before him, make an order for ***discharge of such bond*** or ***otherwise*** as he thinks fit. It may also be important to highlight that upon withdrawal of prosecution by the Public Prosecutor under section 494(a) Cr.P.C, prior to framing of charge, the accused is discharged. The above narrated procedure for investigation into the offences, irrespective of their seriousness or heinousness, leaves no room in lawfully assuming that while empowering the police officer to investigate the crime, and the Magistrate, with his supervisory power over investigation, ***on each and every step***, an emphasis has been laid to safeguard the human liberty, guaranteed as a fundamental right under Article 9 of the Constitution of Islamic Republic of Pakistan, 1973.

8. In addition to above, the Police officer, after investigation, is also authorized to recommend the ***case for its cancelation***. Strictly speaking, in the Code of Criminal Procedure, 1898, there exists no express power for cancelation of FIR. However, an FIR can be cancelled by a Magistrate under Rule 24.7 of the Rules, 1934 and in the light of law laid down in case of *"Bahadur and another*

Vs. The State and another" **(PLD 1985 SC 62)**, which is being consistently followed, wherein, it has authoritatively been ruled that although *"neither section 173 Cr.P.C nor any other provision of the Criminal Procedure Code specifically deals with the question of cancellation of a registered criminal case, such a power was found to be "inherent in section 173 read with Section 190 of the Code of Criminal Procedure though the language of subsection (3) does not specifically apply to the case"* by agreeing with the recommendations/cancellation report, provided the same is forwarded by Superintendent of Police with independent opinion formulated in a supervisory capacity and the Prosecutor as required under Section 9(4) of the Punjab Criminal Prosecution Service Act, 2006 on the grounds (i) found to be maliciously false or (ii) false owing to mistake of law or fact or (iii) to be non-cognizable or (iv) matter for a civil suit, unless the investigation of a case is transferred to another police station under Rule 25.7 ***[Cancellation of a case in one police station and registration in another]*** or District under Rule 25.8 ***[Cases which may be lawfully investigated in more local areas than one]*** or the investigation has been transferred under Article 18 (6) of Police Order 2002. Reliance is placed on the case reported as *"Ehsan Ullah Chaudhry Vs. the Staten and 3 others"* **(PLD 2023 Lahore 233)** and *"Ali Mansoor Vs. Area Judicial Magistrate, etc."* **(PLJ 2024 Lahore 315).** An order of discharge of an accused puts the FIR in hibernation whereas the cancellation of FIR is like burial of a dead-body in a grave.

9. The matter can be viewed through the same prism yet from another angle. Article 9 of the Constitution of Islamic Republic of Pakistan, 1973, ordains that *"no person shall be deprived of their life or liberty except in accordance with the law."* In criminal jurisprudence, the state's power to arrest, detain, or punish an individual directly impacts the right to liberty. To ensure that such actions conform to the due process of law, the Code of Criminal

Procedure, 1898 (Cr.P.C.), provides a structured framework, through classification of the offences and the provisions relating to bail, thereby reinforcing the principles enshrined in Article 9. Under Section 4(o) of the Cr.P.C., an ***"offence"*** is broadly defined as any act or omission made punishable by law, encompassing crimes under the Pakistan Penal Code (PPC), 1860, as well as other special and local laws. However, all offences are not treated alike. The severity and impact of an offence on society necessitate a differentiated legal response. To maintain this balance, Section 4(b) Cr.P.C. classifies offences into bailable and non-bailable categories**,** to ensure that the legal system does not impose undue restrictions on liberty in less severe cases while maintaining relative strict control for graver offences. In bailable offences**,** Section 496 Cr.P.C. guarantees the accused's right to bail, ensuring that an individual is not unjustly detained for minor offences, which has been embodied in the light of the guarantee contained in Article 9 preventing the unnecessary deprivation of liberty and upholding the principle that an accused should not suffer undue hardship before conviction. ***Conversely,*** Section 497 Cr.P.C. governs non-bailable offences, where bail is not an absolute right of an accused, which can however be availed subject to judicial discretion to be exercised by the relevant Court. Even the prolonged detention without trial being in contradiction to the essence of Article 9, has been recognized a good ground for the release of an accused on bail to prevent arbitrary or indefinite deprivation of liberty. For further reinforcement of these principles, Section 498 Cr.P.C. empowers the High Court and the Court of Sessions to grant pre-arrest bail, ensuring a safeguard by way of judicial oversight against potential misuse of power. All this aligns with the doctrine of presumption of innocence**,** which remains a cornerstone of criminal law, and ensures that an individual is not treated as guilty until proven otherwise through a fair and impartial trial *[see "Sardaran Bibi Vs. State"* **(2024 SCMR 1116),** *"Zaheer Sadiq Vs. Muhammad Ijaz"*

(2017 SCMR 2007), *"Mst. Anwar Begum vs. Akhtar Hussain alias Kaka"* **(2017 SCMR 1710)***]*. Thus, the interplay between Article 9 of the Constitution and the procedural safeguards embedded in the Cr.P.C. reflects a harmonized legal structure designed to balance individual freedoms with the imperatives of justice and public order. While the state holds the authority to punish offenders in the interest of law and order, this authority is not absolute; it must operate within the framework of legality, due process, and judicial oversight. By ensuring that no person is deprived of liberty without lawful justification, the legal system upholds the fundamental tenets of justice, fairness, and human dignity, making Article 9 not just a constitutional guarantee but a living principle that shapes the administration of criminal justice in Pakistan. It may not be out of place to point out that even Section 426 Cr.P.C. allows the appellate courts to suspend a sentence pending appeal, and as such prevents a convict from being unnecessarily deprived of his liberty while exercising his legal right to challenge the verdict.

10. ***Ordinarily upon a report under Section 173 Cr.P.C with a sufficient incriminating material against the accused, or in a private or suo-motu complaint***, the Magistrate while proceeding under Section 190 of Cr.P.C, takes cognizance of offence or has to send the case to the Court of competent jurisdiction. However, sometimes certain extra ordinary situations occur i.e. if the Magistrate fails to pass any order in respect of an accused, placed in column No.2 of report under Section 173 Cr.P.C, ***either*** requiring him to submit a bond for his appearance in the court to face the trial ***or*** his bond is not discharged ***or*** such an accused is not summoned even on the request of the complainant or the state at a later stage of the trial *and* the order of non-summoning to the accused ***or*** otherwise to face trial, are either upheld or set aside respectively by the higher fora ***or*** an order due to non-appearance of complainant/evidence under Section 249 Cr.P.C for stopping the proceedings, is passed ***or*** a discharge order of an accused as a result

of withdrawal from prosecution prior to framing of charge, by a Public Prosecutor under Section 494(a) Cr.P.C is made, to the prejudice of the accused, without any fault on his part, therefore, a question would arise as to whether the fate of such accused despite owing to his inherent presumption of innocence or not, in absence of pronouncement of a final judgment, shall remain uncertain and hanging just because of pendency of his criminal case. Since the inherent presumption of innocence attached to a person accused of an offence, unless proven guilty is rooted deeply in right of life guaranteed under Article 9 of the Constitution of Islamic Republic of Pakistan, 1973, therefore, such pendency would not affect right of such accused. Reliance is placed upon case reported as "*Sohail Aslam Vs. The State"* **(2017 YLR 1383)**, *"Sadar alias Sadaruddin and another Vs. The State"***(2023 P.Cr.LJ 874).** Irrespective of the above situation, ordinarily the proceedings against an accused facing trial terminate either in the form of acquittal, under section 249-A Cr.P.C ***[power of magistrate to acquit accused at any stage]***, 245 of Cr.P.C ***[acquittal after trial by the magistrate]***, 265-K Cr.P.C ***[power of Court of Sessions to acquit the accused at any stage]***, 345 Cr.P.C ***[acquittal as a result of compounding of offences with or without permission of Court]*** or by delivering a judgment under Section 366 Cr.P.C or under section 494(b) Cr.P.C ***[as a result of withdrawal from prosecution, after a charge has been framed or when under the Code no charge is required, with the consent of the Court by the Public Prosecutor]*** or culminate into judgment of ***conviction***.

11. It may be significant to point out that on completion of the case/conclusion of trial originated on a report under Section 173 Cr.P.C, a ***charge sheet slip*** commonly called as ***"saza slip"*** in compliance with the rule 27.2, is filled in, under the order of the Criminal Court trying the case and returned to the office of the Senior Superintendent of Police. Such result is entered in the ***General Crime Register and the English Register of Cognizable***

Offences and is also communicated to the Police Station concerned. A carbon copy of the charge sheet slip [in Form 27.2 (1)(a)] is submitted to the District Crime Record Bureau of the concerned District Headquarter ***for record*** by the Prosecution Branch concerned. In addition to above, the particulars of the charge sheet slip, are also scribed under sub Rule 5 of 24.5. ***(First Information Report Register)*** Rules 1934 on the reverse of the original copy and the slip is returned to the Superintendent's office.

12. ***On the other hand,*** in-spite of there being a judicial consensus that a private complaint *[Complaint means as defined under section 4(h) of Cr.P.C "the allegation made orally or in writing to a Magistrate, with a view to his taking action under this Code, that some person whether known or unknown, has committed an offence,* ***but it does not include the reports of a police-officer****]*, is an alternate remedy yet ***Unlike*** a case instituted upon a police report, ***no such rule exists in the Police Rules, 1934*** putting the police under an obligation to maintain the record regarding the persons accused of an offence, facing the trial in a private complaint within the territorial limits of relevant Police Station. ***However,*** in case of culmination of a complaint into conviction in certain cases, the Magistrate under High Court Rules and Order Volume III Chapter 11 Part G ***[Information of conviction in complaint cases to be furnished to the police]*** is obliged to furnish the police with such information.

13. Furthermore, a record is also maintained relating to conviction and orders to execute bonds in all cognizable police cases, as warranted by Rule 27.29 of Rules, 1934, by making entries in this regard in ***(a)*** the Urdu General **Crime Register and the English Register of Cognizable Offences** maintained in the office of the Superintendent ***(b)*** the **First Information Report Register,** maintained at the police station reporting the offence. The detail of convictions and the orders passed in certain offences is also entered ***(c)*** the **Conviction Register** to fulfil the purpose of

Section 75 of Pakistan Penal Code ***[Enhanced punishment for certain offences under Chapter XII or Chapter XVII after previous conviction]***, in each police station as prescribed in *Chapter XXII of the Police Rules, 1934[The Police Station]*. A Conviction Register under Rule 22.60 of Rules, 1934 is maintained separately. Entries in this register are confined only in respect of offences mentioned in rule 27.29 of Rules, 1934. It may be reiterated that ***original copy of FIR is retained as a permanent record in the police station. Similarly, the conviction register is also a permanent record of the crime and criminals of each village and of previous convictions, and is to a great extent the basis for the preparation of history sheets and other measures of surveillance.***

14. In addition to the above exceptional situations, highlighted in paragraph No.10 of this judgment and irrespective of gravity or heinousness of the charge, owing to inherent innocence attached to a person accused of an offence, the acquittal of an accused by a competent court of jurisdiction, bestows a double presumption of innocence upon him. Reliance in this regard is placed upon the dictum of law laid down in the case of *"Shahid Abbas Vs. Shahbaz and others"* **(2009 SCMR 237)**,*"Sardaran Bibi Vs. The State and others"* **(2024 SCMR 1116)**, *"The State through PG Sindh and others vs. Ahmed Omar Sheikh and others"* **(2021 SCMR 873)**, *"Zaheer Sadiq vs Muhammad Ijaz and others"* **(2017 SCMR 2007).** Since, the word ***"acquittal"*** has not been defined in Criminal Procedure Code, 1898, therefore, to find out its meaning, extent and scope, a resort is being made to its ordinary dictionary meanings. In Corpus Juris Secundum Part 1-A at page 285 the word acquittal has been defined as *"discharged, released from a debt, duty, obligation, charge, or suspicion of guilt; or set free or judicially discharged from an accusation.",* In Black's Law Dictionary 5th Edition the word acquittal has been given the meaning *"The legal and formal certification of the innocence of a*

person who has been charged with crime; deliverance or setting free a person from a charge of guilt; finding of not guilty. Also, one legally acquitted by a judgment rendered otherwise than in pursuance of a verdict, as where he is discharged by a Magistrate because of the insufficiency of the evidence, or the indictment is dismissed by the Court for non-prosecution. Or, it may occur even though the question of guilt or innocence has never been submitted to a jury, as where a defendant, having been held under an indictment on information, is discharged because not brought to trial within the time provided by statute." In Encyclopaedia Britannica Volume-1, 15th edition at page 67 acquittal, in criminal law has been defined as *"Acknowledgment by the Court of the innocence of the defendant or defendants. Such a judgment may be made by a jury in trial or by a Judge who rules that there is insufficient evidence either for conviction or for further proceedings. An acquittal removes all guilt in law: An acquittal "in fact" occurs when a jury finds the defendant not guilty".* In Wharton's Law Lexicon- acquittal is defined as "quie tus" which means as *"Freed or acquitted; discharged of all further liability."* The above reproduction of the definition or the meanings of word "acquittal" would clearly show that once a person charged with certain offences by judicial order is acquitted, the verdict means a formal certification of the innocence of such person. The above definitions have found their judicial recognition in a number of cases decided by the Superior Courts of the Country. Reliance is placed upon case reported as *"Chaudhry Abid Raza Vs. Election Tribunal Punjab/Lahore High Court, Lahore and 3 others"* **(PLD 2008 Lahore 200).** In case of *"Muhammad Jamil Khan Versus Irfan Ellahi"* **(2016 MLD 1118)** the acquittal has been dealt as under:

> "Acquittal means to declare a person accused of a crime to be innocent, while on the contrary, discharge means to release someone from custody, or allow someone to leave, or to pay of."

15. It has been a consistent view of the Superior Courts pronounced in various judgments having its binding effect in terms of Articles 189 and 201 of the Constitution of Islamic Republic of Pakistan, 1973 that all acquittals are certainly honourable and there can be no acquittal, which may be said to be dishonourable. Reliance in this regard is placed upon case reported as *"Faraz Naveed Versus District Police Officer Gujrat and another"* **(2022 SCMR 1770)**, *"Chairman Agricultural Development Bank of Pakistan and another Versus Mumtaz Khan"***(PLD 2010 SC 695)**, *"Mumtaz Ali Shah Versus Chairman, Pakistan Telecommunication Company Ltd. HQ., Islamabad and 6 others"* **(PLD 2022 SC 1060), *"Attaullah Sheikh Versus WAPDA and others"* (2001 SCMR 269)** and *"Dr. Muhammad Islam Vs. Government of N.W.F.P through Secretary Food, Agricultural, Live Stock and Cooperative Department, Peshawar"* **(1998 SCMR 1993)**.

16. A State, indeed being a political and legal entity is characterized by four essential elements (i) **Papulation** (ii) **Territory** (iii) **Government** (iv) **Sovereignty**. The Government is in-fact an organized structure comprising over various institutions/ departments, commonly called the statutory authorities, responsible for governance and administration. Every entity exercising governmental authorities despite its distinctly defined sphere is part of the State. It may be emphasized that crime is a public wrong and not a personal wrong. The breach and violation of a public right effects the whole community and as such amounts to harm the society in general. It is one of the basic duties of the State to curb this menace and to devise a mechanism by establishing institutions to bring the offenders, if any, to book for maintaining peace and tranquility in the society besides punishing the wrong doers in accordance with law. The Police, in any criminal justice system, plays a significant role by arresting the suspects, investigating the crimes by way of collection of evidence, for their onward

forwarding and submission through the relevant Prosecution Agency to the Court of competent jurisdiction for holding a trial of a person accused of an offence for the determination of his innocence or otherwise. The State is represented in the Court of Law either through a Public Prosecutor or an Advocate General to be appointed under Section 6 of the Punjab Criminal Prosecution Service (Constitution, Functions and Powers) Act, 2006 (III of 2006) and Article 140 of the Constitution of Islamic Republic of Pakistan, 1973, respectively in the Province of the Punjab, by the government with the responsibility to ensure that the justice system is duly and diligently served on its behalf. The relationship between the Police and the Prosecution is always characterized by collaboration and distinction viz-a-viz their role as well. The Courts by following the relevant applicable procedural law, in compliance with Article 10-A of the Constitution of Islamic Republic of Pakistan, 1973, hold the trial in discharge of their sacred duty to decide finally about the fate of the accused either in the shape of acquittal or conviction by delivering its judgment.

17. Chapter XXXI “Of Appeals” the Code of Criminal Procedure, 1898 or other laws provide a right of appeal, against any acquittal order/judgment passed by any Court other than High Court to *(i)* the Provincial Government under Section 417 (1) Cr.P.C through a Public Prosecutor *(ii)* complainant in case of a private complaint, after seeking special leave to appeal, under Section 417(2) of Cr.P.C. *(iii)* an aggrieved person under Section 417(2-A) Cr.P.C, to challenge the verdict of acquittal alleging the same to be illegal, perverse, capricious, resulting into miscarriage of justice before the High Court. Even a High Court or a Court of Sessions under Section 435 of Cr.P.C, is vested with the power to call for and examine the record of any proceedings before any inferior Criminal Court for the purpose of satisfying itself or himself as to the correctness, legality or propriety of any finding, sentence or order recorded or passed. In case of non-filing of any appeal or

exercise of Revisional Power by the Superior Court, as described hereinabove, any judgment including the judgment of an acquittal attains finality, perpetuating the presumption of innocence.

18. Although the concept of separation of power allows every organ of the state to operate within its allotted sphere independently under the constitution and law, yet the verdicts of the Courts, have to be accepted by all other authorities being legally and constitutionally binding upon them. The power of judicial review, vesting with the judicature, places the Courts at a distinct and easily distinguishable higher pedestal as compared to rest of the state organs despite they also exercise the state power within the sphere allotted to them. A defiance of judicial verdicts would amount to undermine the principle of separation of power. It may be added to emphasize that under Article 189 of the Constitution of Islamic Republic of Pakistan, 1973, any decision of the Supreme Court deciding the question of law or is based upon or enunciating a principle of law shall be binding on all other Courts in Pakistan. Furthermore, Article 190 of the Constitution ordains that all executive and judicial authorities throughout Pakistan shall act in aid of the Supreme Court ***objectively***. Reliance is placed upon case reported as *Hasnain Raza Vs. Lahore High Court, Lahore"* **(PLD 2022 SC 7)**. Even an obiter dicta of Supreme Court has its binding effect. Reliance is placed upon case reported as *"Justice Khurshid Anwar Bhinder and others Vs. Federation of Pakistan and another"***(PLD 2010 SC 483)** and *"Dr. Iqrar Ahmad Khan Vs. Dr. Muhammad Ashraf and others"* **(2021 SCMR 1509)**. The rule of law un-hesitantly binds every one including the state organs not to exceed the limits circumscribed by law in any manner and as such, every state institution including the Police are supposed to show regards towards the decisions rendered by the courts, as a result of their judicial review, and lack the legal authority to defy the judicial verdicts through standing orders or any other means because of Article 4 of the Constitution of Islamic Republic of Pakistan, 1973

emphasizes the rule of law. Adoption of such an approach would ensure the promotion of concept of accountability and equality, conveying a message that no one is above the law. Reliance is placed upon case reported as *"Suo Motu case No.1 of 2022 and Pakistan Peoples Party Parliamentarians (PPPP) through its Secretary General and 4 others Vs. Federation of Pakistan through Secretary, Ministry of Law and Justice and 4 others"* **(PLD 2022 SC 574)** wherein the concept of rule of law has meticulously been compounded.

19. Now coming to the facts of instant case, it is empathetically observed that the respondents in their report and parawise comments have not disputed the position of the petitioner being otherwise eligible and on merit for his recruitment as Constable in Punjab Highway Patrol Bahawalpur Region. It has, however, been maintained that during his character/antecedents verification, it surfaced that the petitioner was previously involved in a criminal case registered vide FIR No.319/2014 dated 08.08.2014, offence under Section 377 PPC at Police Station Faqir Wali, District Bahawalnagar and though he had been acquitted of the charge in aforesaid case, vide judgment dated 27.03.2015 by the learned trial Court, but he did not disclose this fact while submitting his sworn affidavit along with his application for recruitment and as such he made a concealment, therefore, in the light of instructions issued by the office of Inspector General of Police Punjab, vide its office letter bearing No.AD-III/6066-6104/XV dated 20.05.2022 & Addl. IGP/PHP Lahore vide letter No.14234/OSI/ PHP/HQ dated 05.09.2022, which are based upon the initial policy instructions vide letter No.SE-IV/7317-70/II, dated 26.06.2014, stating *"all those candidates who, during character verification, have been found involved in criminal cases (either under trial or acquitted on multiple grounds) shall not be appointed in Police Department as Constable"* and while relying upon Rule 12.14 of the Police Rules, 1934 that *"Recruit shall be of good character and great care shall*

be taken in selecting men of type suitable for police service" he has been refused the appointment letter and his representation was also dismissed, vide order dated 02.03.2023. **The comments filed by the respondents are based upon their suicidal defence.** The petitioner in compliance with the following requirement as contained in the advertisement:-

> تمام امیدواران کو بیان حلفی جمع کروانا ہوگا کہ وہ کسی قسم کی ایف آئی آر (FIR) یا مقدمہ میں نامزد/ملوث/مطلوب نہ ہیں۔ غلط بیان حلفی جمع کروانے کی صورت میں امیدوار کو پولیس میں بھرتی کے لیے تا حیات نا اہل قرار دیا جائے گا اور قانونی کاروائی عمل میں لائی جائےگی۔

submitted his sworn affidavit, to the following effect:-

> حلف نامہ
>
> 1. حلفاً بیان کرتا ہوں کہ میں کسی قسم کی ایف آئی آر یا مقدمہ میں ملوث/مطلوب نہ ہوں۔ محکمہ کو اختیار ہو گا کہ اس ضمن میں غلط بیانی کی صورت میں مجھ پولیس میں بھرتی کیلئے تاحیات نا اہل قرار دے دے اور قانونی کارروائی عمل میں لائی جائے۔
> 2. ----------
> 3. ----------
>
> محمد شیراز

20. The above reproduced relevant excerpts of the advertisement and affidavit show that the petitioner was required only to disclose about the detail of any criminal case either pending investigation or trial against him, therefore, the affidavit submitted by him appears to be in accordance with the requirement of the department and in compliance with the advertisement. Presently, no criminal case is registered or pending against the petitioner. The petitioner, in the given circumstances, was not obliged to disclose about his previous involvement in any criminal case, therefore, the non-mentioning about his previous involvement and also his subsequent acquittal, vide order/judgment dated 27.03.2015, by the learned trial Court, about 5 ¾ years, even prior to inviting of

applications for recruitment, did not amount to any concealment, rendering him *"unfit"* for his recruitment. Even otherwise, the acquittal of the petitioner had neither been challenged by the Provincial Government nor by any aggrieved person alleging the same being illegal, perverse, capricious, resulting into miscarriage of justice, and as such, the same had attained finality, perpetuating the presumption of double innocence in his favour, in a society, where false implication with ulterior motive is an open secret. Upon earning an acquittal of the charge by a court of competent jurisdiction, the slat containing the credentials of the petitioner had become free of any stigma/embellishment and the inherent innocence attached to him, as such, has become doubled, particularly when his acquittal has already attained finality. Therefore, in a parliamentary form of the Government like ours, the Government is collectively responsible and accountable as well therefore, the Government cannot be allowed to blow hot through its one department and cold by the other in the same breathe by sitting over the judgment passed by a court of competent jurisdiction to circumvent and contravene the judicial verdict by issuing any instruction, letter, order, circular, memo or through any of its other action to the prejudice of the constitutionally guaranteed fundamental rights under Part-II, Chapter 1 (Fundamental Rights) of the Constitution of Islamic Republic of Pakistan, 1973 of an individual citizen/petitioner.

21. In addition to above, it may be significant to point out that although a Surveillance Register X, ***Bad Character Rolls*** dispatched X(A) and ***Bad Character received*** X(B) of Rules, 1934 are maintained in accordance with orders contained in Rule 23.4, 23.5 and 23.16 of the Rules 1934, however, ***the entries made therein have to be destroyed two years after the dates of last*** *entries*, and such entries are not perpetual in their nature and effect. It may further be added that mere registration of an FIR cannot be used as a definitive test to label accused of having a bad character.

Reliance is placed upon case reported as *"Rizwan Ali Sayal versus Federation of Pakistan and others"* **(PLD 2024 Lahore 54)**. An inherent presumption of good character which includes both reputation and disposition, is attached to every person unless it is proved to be relevant under The Qanun-e-Shahadat Order (X of 1984). Furthermore, it is an appropriate moment to highlight and amplify that the objects behind maintaining the permanent record in the shape of original copy of FIR in the Police Station and record of conviction in the relevant conviction register of the crime and criminals of each village and of the previous convictions, to a greater extent, is meant for providing basis for the preparation of history sheets, other measures of surveillance and research purpose, as noticed above, only and in absence of any other clear in-eligibility, attributable to an individual, cannot adversely affect the rights of a person. In the list of cherished fundamental rights enumerated and guaranteed as aforesaid in the Constitution, the rights regarding the security of person (Article 9), freedom of trade, business or profession (Article 18) have a paramount position. Undeniably, every citizen, who applies for a government job is entitled to it unless the government can establish some reasons for denying such employment. The right to livelihood is an undeniable right for individuals, as employment serves as the primary source of their livelihood. This right should be protected as a fundamental right. This is the "liberty" right-liberty to work-which is the very essence of Article 9, 18, 27 and 38 (c) of the Constitution and denial of a government job is a serious blow to any citizens. It has been held in case reported as *Abdul Wahab and others Versus HBL and others"***(2013 SCMR 1383)** that *"the right to life of a person/ citizen shall include the right to livelihood and right to livelihood, therefore cannot hang on to the fancies of individuals in authority; the employment is not a bounty from them (individuals in authority) nor can its survival be at their mercy".*

22. In the light of above discussion, by allowing the instant writ petition, the impugned order dated 02.03.2023 passed by respondent No.3 is set aside being illegal, as such of no legal effect with all consequential implications, and having been passed without lawful authority. Consequently, the respondents are directed to issue formal appointment orders in favour of the petitioner against the post, he had applied for within fifteen days after receipt of the copy of the order under intimation to DR Judicial of the Court.

23. Office is directed to transmit copy of this judgment to the Inspector General of Police, Punjab and Prosecutor General Punjab for information.

I appreciate the efforts of Mr. Muhammad Zahid Farid and Ejaz Ahmad Sipra, Civil Judges/Research Officers, who collected and provided relevant material in support of question involved in this case.

(Anwaarul Haq Pannun)
Judge

APPROVED FOR REPORTING.

Judge

Siddique